

TENTATIVE RULINGS FOR June 24, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

RYLAN JOHN BURNETT,

v.

ELIJAH DASHAWN TAYLOR, *et al.*

CIVRS2402748

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On December 11, 2024, Plaintiff Rylan John Burnett (“Plaintiff”) filed a Judicial Council Form Complaint alleging causes of action for motor vehicle negligence, general negligence, and negligent entrustment against Defendants Annette Lerma, Elijah Dashawn Taylor, (“Taylor” or “Defendant”) and Angelena Lerma (collectively, “Defendants”).

Plaintiff alleges that on August 12, 2023, at the intersection of Central Avenue and El Prado Road in the City of Chino, the Defendants were negligent in operating, controlling, and entrusting a motor vehicle so as to cause a motor vehicle collision that severely injured Plaintiff. (Compl. ¶ GN-1)

Defendants filed a single answer on February 27, 2025, and at the time were represented by the same counsel. On March 6, 2026, a substitution of attorney was filed on behalf of Taylor.

On April 3, 2026, Plaintiff and Taylor filed motions against each other regarding the same discovery, Plaintiff’s requests for production (“RFP”s) 61 and 77. Taylor’s motion sought a relief from serving objections and late discovery responses, pursuant to Code of Civil Procedure section 2031.300, subdivision (a). Plaintiff’s current motion before the Court seeks to compel further responses to the same RFPs (RFPs 61 and 77).

Plaintiff Has Not Evidenced a Good Faith Effort to Meet and Confer

If a party brings a motion to compel further responses, it is required to include a meet and confer declaration with its motion. (Code Civ. Proc., § 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, although counsel for Plaintiff attaches a declaration with his motion, such declaration does not state facts showing a reasonable and good faith attempt at informal resolution. Per counsel’s declaration, the RFPs were served prior to Taylor’s substitution of counsel, and once Defendant noticed the error, *Defendant* sent a meet and confer letter, not Plaintiff. (N. Yazdi Decl. ¶7, Ex. 4.) Plaintiff’s response to the meet and confer letter was essentially to tell Defendant that his responses were late and “confirm” that Plaintiff would be moving “forward with the necessary motions to compel.” (N. Yazdi Decl. ¶ 8, Ex. 5.)

Plaintiff’s meet and confer effort is deficient. Plaintiff was required to show it made “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040 subd. (a).) Plaintiff’s declaration does not make this showing; instead it shows Plaintiff sent one email prior to filing the current motion.

As such, this Court may deny the motion based on Plaintiff’s failure to properly meet and confer. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431.) This Court also may continue the motion for failure to properly meet and confer pursuant to San Bernardino County Local Rule 560. The Court exercises its discretion and continues the hearing on Plaintiff’s Motion to Compel Further Verified Responses to July 16, 2026 at 9:00 a.m. Plaintiff’s counsel shall file a meet and confer declaration at least 10 calendar days prior to the July 16 hearing.

CONCLUSION

Based on the foregoing the Court ORDERS the following:

1. Finds Plaintiff did not adequately meet and confer prior to filing this motion;
2. **Continues the hearing on Plaintiff's Motion to Compel Further Verified Responses to July 16, 2026 at 9:00 a.m.;** and
3. Plaintiff's counsel shall file a meet and confer declaration at least 10 calendar days prior to the July 16 hearing.

Plaintiff's Counsel is ordered to provide notice.

TENTATIVE

FCL BUILDERS CALIFORNIA LLC

v.

PATRIOT PARTNERS; RC WHITTRAM LLC

CIVRS2503049

PROCEDURAL/FACTUAL BACKGROUND

On May 2, 2025, Plaintiff FCL Builders California, LLC, filed a complaint against Defendants PatriotDevelopmentPartners, LLC (esa Patriot Partners) and RC Whittram, LLC, alleging causes of action for: (1) breach of contract; (2) goods and services rendered; (3) open book account; and (4) foreclosure of mechanic's lien.

Plaintiff alleges it entered into a limited authorization to proceed (LAP) with Defendants on or about October 23, 2022, for construction activities at the property located at 12987 to 13045 Whittram Avenue in Rancho Cucamonga, which Whittram allegedly owns. Under the LAP, Defendants allegedly agreed to pay FCL \$97,976 for labor, materials, equipment, and services in connection with work at the property. FCL alleges it performed its obligations under the LAP, but Defendants breached by failing to pay amounts owed for FCL's work, causing damages of at least \$285,652.65. (Compl., ¶¶ 7-8, 10-13.)

Plaintiff further alleges that Defendants requested labor, materials, equipment, and services for the property, FCL provided them, and Defendants failed to pay the reasonable value of those goods and services, alleged to be at least \$285,652.65. (Compl., ¶¶ 15-18.) FCL also alleges that it and Whittram had financial transactions, FCL kept an account of debits and credits in the regular course of business, and Whittram owes at least \$285,652.65 on that account. (Compl., ¶¶ 20-22.)

For the mechanic's lien claim, FCL alleges it provided labor, services, equipment, and/or materials at Patriot's and/or Whittram's request and based on their promise to pay; Defendants failed to pay; and FCL timely served and recorded a mechanic's lien on or about March 17, 2025, as Document No. 2025-0056817, for labor, services, equipment, and/or materials used or consumed in the work of improvement at the property. FCL alleges the full lien amount of \$285,652.65 remains unpaid. (Compl., ¶¶ 26-29; Exh. A.)

Now before the Court is Defendants' motion to remove the mechanic's lien. Plaintiff opposes and Defendants reply.

DISCUSSION

Legal Standard

A property owner may bring a motion to remove an unjustified mechanic's lien without waiting for trial on the lien foreclosure claim. (*Lambert v. Superior Court* (1991) 228 Cal.App.3d 383, 387-389 (*Lambert*).)¹ The lien claimant bears the burden of establishing the probable validity of the claim underlying the lien. (*Cal Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 845 (*Cal Sierra*).) If the claimant fails to meet that burden, the lien may be released in whole or in part. (*Ibid.*)

To establish the validity of a mechanic's lien, the claimant must show that the labor, services, and/or materials were actually used in the construction, the reasonable value of the work and/or materials, and the date of completion or cessation of work. (*Basic Modular Facilities, Inc. v. Ehsanipour* (1999) 70 Cal.App.4th 1480, 1485 (*Basic Modular*).)

Defendants' Request for Judicial Notice

¹ A motion seeking pretrial removal of a mechanic's lien under *Lambert* is commonly referred to as a "*Lambert* motion." (See *Cal Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 845.)

Defendants request judicial notice of FCL's mechanic's recorded in the Official Records of San Bernardino County on March 18, 2025, as Document No. 2025-0056817. (RJN, Exh. F.) There is no opposition to the request.

The Court GRANTS judicial notice of Exhibit F, FCL's mechanic's lien recorded in the Official Records of San Bernardino County as Document No. 2025-0056817. (Evid. Code, §452, subd. (c).)

Defendants' Evidentiary Objections

1. Declaration of Nanthalom Darina Sokanthong

Objection No. 1 to paragraph 3 of Sokanthong's declaration: The Court SUSTAINS. The June 2025 site observation occurred after FCL recorded the mechanic's lien and does not establish whether work ceased during the relevant pre-recording period.

Objection No. 2 to paragraph 4 of Sokanthong's declaration: The Court SUSTAINS IN PART and OVERRULE IN PART. The objection is overruled to the extent Ms. Sokanthong states she personally observed piles of concrete and debris. The objection is sustained to the extent she opines that those conditions were "consistent with materials commonly found at a project site undergoing work of improvement or maintenance", as that conclusion lacks adequate foundation and is speculative.

Objection No. 3 to paragraph 5 of Sokanthong's declaration: The Court SUSTAINS. The photographs taken after the lien was recorded do not establish whether work occurred during the relevant pre-recording period and are not material to the timeliness issue.

2. Declaration of Natasha A. Kader

Objection No. 1, to paragraph 3² of Kader's declaration: The Court SUSTAINS. The September 2025 Google Maps images post-date the mechanic's lien and do not establish whether work occurred during the relevant pre-recording period.

Objection No. 2, to paragraph 4 of Kader's declaration: The Court SUSTAINS IN PART and OVERRULES IN PART. The objection is overruled to the extent counsel states FCL seeks recovery in this action based on Invoice No. 22512-3 and attaches the invoice as Exhibit C. The objection is sustained to the extent the declaration is offered to prove the truth of the invoice contents, that the invoiced work was performed, or that the amounts are owed, because counsel has not established personal knowledge or foundation for those facts.

Objection No. 3, to paragraph 5 of Kader's declaration: The Court SUSTAINS. Ms. Kader has not established personal knowledge or foundation for the asserted \$8,185.83 Mobile Modular reimbursement, and no Exhibit D is attached to the declaration.

Analysis

Defendants move to remove the lien on four grounds: (1) the lien was untimely; (2) the lien is willfully overstated; (3) the lien does not identify qualifying contracted work; and (4) the lien lacks an adequate general description of the work performed. Defendants also seek \$6,560 in attorney's fees.

1. The Lien Was Untimely Recorded

Civil Code section 8412 provides that a direct contractor may not enforce a mechanic's lien unless the contractor records the claim of lien after completing the direct contract and before the earlier of: (1) 90 days after completion of the work of improvement; or (2) 60 days after the

² Misnumbered as paragraph 2.

owner records a notice of completion or notice of cessation. Civil Code section 8180 provides that completion of a work of improvement occurs upon, among other events, cessation of labor for a continuous period of 60 days. (Civ. Code, § 8180, subd. (a)(3).)

Here, no notice of completion or notice of cessation was recorded. Therefore, the applicable deadline was 90 days after completion of the work of improvement. Defendants submitted evidence that FCL was contracted only to perform preliminary work under the LAP, consisting of demolition, temporary fencing, security, and supervision, for a total of \$97,976. (Rice Decl. ¶¶ 3-4, Exh. A.) Rice declares that Patriot Partners did not execute a final contract and did not authorize FCL to perform additional work beyond the preliminary work. (Rice Decl. ¶ 5.) Rice further declares that FCL completed the demolition work on or about April 22, 2024; the longest-duration item under the LAP was three months of temporary fencing, which expired on or about July 22, 2024; and no other contractors performed work on the property after that date. (Rice Decl. ¶ 6.) Rice also declares that no further work was performed on the property after FCL completed its demolition work, and the project was never fully completed. (Rice Decl. ¶ 7.)

Based on this evidence, there was a continuous cessation of labor beginning July 22, 2024. The work of improvement was therefore deemed complete 60 days later, on or about September 20, 2024. (Civ. Code, § 8180, subd. (a)(3).) FCL then had 90 days, or until December 19, 2024, to record its lien. (Civ. Code, § 8412.) FCL did not record its lien until March 18, 2025. The lien is therefore untimely.

Even if the Court uses the most generous possible date for FCL, the result does not change. Defendants note that FCL produced an invoice dated September 19, 2024. Even if the Court treated that invoice date as the last possible date on which FCL performed any work, the 60-day

cessation period would have expired on November 18, 2024, and FCL's 90-day deadline to record the lien would have expired on February 16, 2025. The March 18, 2025 lien is still untimely.

2. FCL's Opposition Does Not Establish Probable Validity as to Timeliness

FCL's opposition does not create a factual dispute as to timeliness. FCL relies primarily on photographs and observations from June 2025 and Google Maps images from September 2025 to argue that the property showed signs of ongoing activity. (Sokanthong Decl. ¶¶ 3-5; Kader Decl. ¶ 3.) As discussed above, Defendants' objections to that evidence are sustained. In any event, even if considered, those observations and images post-date the March 18, 2025 lien. They do not show that any labor occurred during the 60-day no-work period following July 22, 2024, which Defendants contend triggered completion under Civil Code section 8180, subdivision (a)(3), or at any time before the lien was recorded.

Even accepting the photographs for the limited purpose of showing the condition of the property in June or September 2025, they do not rebut Rice's declaration that no work occurred for a 60-day period after July 22, 2024. Nor does FCL submit a declaration from any witness with personal knowledge that labor was performed at the property during the relevant 60-day cessation period.

FCL's reliance on cases addressing commencement of a work of improvement is misplaced. The issue here is not whether limited physical activity can constitute commencement of a work of improvement. The issue is whether FCL has shown that labor did not cease for a continuous 60-day period before its lien-recording deadline. It has not. Evidence of alleged post-lien site conditions does not establish the probable validity of the lien's timeliness.

3. Equitable Estoppel Does Not Save the Untimely Lien

FCL alternatively argues Defendants should be equitably estopped from asserting untimeliness because Defendants did not record or serve a notice of cessation and did not otherwise inform FCL that work had stopped. The argument is unpersuasive.

Civil Code section 8180 expressly recognizes that completion may occur by 60 days of cessation of labor, even without a recorded notice of cessation. (Civ. Code, § 8180, subd. (a)(3).) Defendants therefore had no statutory obligation to record a notice of cessation for the 90-day deadline under Civil Code section 8412 to begin running.

FCL also has not established the elements of equitable estoppel. The requirements for application of the doctrine of equitable estoppel are: (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury. (*Fontana Paving, Inc. v. Hedley Bros., Inc.* (1995) 38 Cal.App.4th 146, 156-157 (*Fontana Paving*), quoting *Driscoll v. City of Los Angeles* (1967) 67 Cal.2d 297, 305.) Here, FCL identifies no affirmative representation by Defendants that work remained ongoing, no conduct intended to induce FCL to delay recording its lien, and no reasonable reliance. Defendants' failure to record a notice of cessation, standing alone, is insufficient because the statute does not require such a notice before completion may occur by 60 days of cessation of labor.

FCL's reliance on *Doherty v. Carruthers* (1959) 171 Cal.App.2d 214 (*Doherty*) is also unpersuasive. In *Doherty*, the owner recorded a notice of completion with an erroneous date, and the lien claimants relied on that affirmative act in recording their liens. (*Doherty, supra*, 171 Cal.App.2d at pp. 216-218; see also *Fontana Paving, supra*, 38 Cal.App.4th at pp. 155-156 [discussing *Doherty*].) Here, by contrast, Defendants did not record a misleading notice or

otherwise affirmatively represent that the lien deadline had not begun. Further, FCL could not have relied on the June 2025 site observations in deciding when to record its lien because those observations occurred after FCL recorded the lien in March 2025.

Accordingly, FCL has not established a basis to equitably estop Defendants from asserting the lien was untimely.

4. FCL Has Not Established the Probable Validity of the Lien Amount

The lien amount is also unsupported on the present record. Civil Code section 8430 provides that the amount of a mechanic's lien is limited to the lesser of the reasonable value of the work provided by the claimant or the price agreed to by the claimant and the person who contracted for the work. Civil Code section 8430, subdivision (c), allows a claimant to include work performed based on a written modification of the contract, or as a result of rescission, abandonment, or breach; however, if the lien is based on rescission, abandonment, or breach, the amount may not exceed the reasonable value of the work provided by the claimant. (Civ. Code, § 8430, subds. (a), (c).) On a *Lambert* motion, the claimant still bears the burden to establish the probable validity of the claim underlying the lien, including the lien amount. (*Cal Sierra, supra*, 206 Cal.App.4th at p. 845; *Basic Modular, supra*, 70 Cal.App.4th at p. 1485.)

Defendants submitted the LAP, which states that if the parties agreed to a stipulated lump sum, no further work would be performed in excess of that amount unless both parties mutually agreed in writing to a change order increasing the scope of work and stipulated sum. (Rice Decl. Exh. A.) Rice declares that no final contract was executed, FCL was not authorized to conduct additional work beyond the preliminary work, Defendants paid FCL in full for the preliminary work on October 14, 2024, and he is unaware of any additional agreements expanding the scope of work. (Rice Decl. ¶¶ 5, 8, 10.)

FCL does not submit evidence from a project manager, employee, or other witness with personal knowledge establishing that Defendants authorized additional work, that any written change order was executed, or that the claimed additional work was actually performed for the property. Instead, FCL relies primarily on counsel's declaration attaching invoices and asserting what FCL seeks to recover. That is insufficient to establish probable validity of the lien amount, particularly in light of the LAP's written-change-order requirement and Rice's declaration denying any authorization for additional work. (Rice Decl. ¶¶ 4, 5, 10; Exh. A.)

5. The Overstatement Issue Provides Additional Support for Removal

FCL also appears to concede that the lien amount includes charges attributable to a separate project. FCL states the lien inadvertently included \$26,683.82 in charges for another Patriot Partners project and asks the Court to reduce the lien to \$258,968.83. (Opp. at p. 11:7-26.)

That admission does not necessarily establish willful overstatement by itself. Erroneous information does not invalidate a lien unless the requirements of Civil Code section 8422³ are met, and *Basic Modular* recognizes that an excessive lien may be reduced to the proper amount in appropriate circumstances. (*Basic Modular, supra*, 70 Cal.App.4th at p. 1485.)

Although an excessive lien may be reduced to the proper amount, FCL has not provided a competent evidentiary basis for doing so here. FCL concedes the lien includes amounts attributable to another project, but does not provide admissible evidence from a witness with personal knowledge identifying the authorized scope of any additional work, which charges were

³ Civil Code section 8422 provides that erroneous information in a claim of lien relating to the claimant's demand, credits and offsets, work provided, or description of the site does not invalidate the lien unless the court determines either that the claim was made with intent to defraud or that an innocent third party, without notice, became a bona fide owner after recordation and the lien was so deficient it did not put the party on inquiry. A claimant forfeits the lien if it willfully includes labor, services, equipment, or materials not furnished for the property described in the lien. (Civ. Code, § 8422, subds. (a)-(c).)

actually furnished to this property, or how the proposed reduced lien amount was calculated. Because FCL bears the burden on this motion to establish the probable validity of the lien, including the amount claimed, there is no basis on this record to reform the lien to a lesser amount.

6. The Lien Description Provides Additional Support for Removal

Civil Code section 8416, subdivision (a)(3), requires a claim of lien to include a general statement of the kind of labor, services, equipment, or materials furnished by the claimant.

FCL's recorded lien describes the work as "Building materials and labor for demolition work." That description may satisfy the statute if the lien were limited to demolition-related work. However, the invoice FCL relies on to support the lien includes line items for security/watchmen, utility/site-maintenance work, a site trailer, temporary fencing, portable restrooms, dumpsters, SWPPP installation, material purchases, and supervision, not merely demolition. (Patel Decl., ¶ 3, Exh. E; Kader Decl. ¶ 4, Exh. C.) The lien itself describes the work only as "Building materials and labor for demolition work." (RJN, Exh. F.). This discrepancy further supports the conclusion that FCL has not established the probable validity of the lien as recorded.

7. Attorney's Fees

Defendants request \$6,560 in attorney's fees under Civil Code section 8488.

Civil Code section 8488, subdivision (c), provides that the prevailing party is entitled to reasonable attorney's fees in connection with the statutory release-order procedure set forth in Civil Code sections 8480 through 8488. That procedure applies where the lien claimant has not commenced an action to enforce the lien within the time provided by Civil Code section 8460. (Civ. Code, § 8480, subd. (a).)

Here, Defendants' motion is brought as a *Lambert* motion challenging the probable validity of the lien on the grounds that the lien was untimely recorded, overstated, unsupported by

qualifying work, and inadequately described. FCL commenced this action to foreclose the lien within 90 days after the lien was recorded. Defendants therefore have not shown that section 8488 applies to this motion, and they have not identified any other basis for a fee award.

Therefore, the Court DENIES Defendants' attorney's fee request.

CONCLUSION

Based on the foregoing, the Court:

GRANTS Defendants' motion to remove FCL's mechanic's lien recorded on March 18, 2025, as Document No. 2025-0056817, in the Official Records of San Bernardino County.

DENIES Defendants' request for attorney's fees.

GRANTS Defendants' request for judicial notice of Exhibit F, FCL's mechanic's lien recorded in the Official Records of San Bernardino County on March 18, 2025, as Document No. 2025-0056817.

SUSTAINS Defendants' Objection Nos. 1 and 3 to the Declaration of Nanthalom Darina Sokanthong; **SUSTAIN IN PART** and **OVERRULE IN PART** Objection No. 2.

SUSTAINS Defendants' Objection Nos. 1 and 3 to the Declaration of Natasha A. Kader; **SUSTAIN IN PART** and **OVERRULE IN PART** Objection No. 2.

Counsel for Defendants is ordered to Provide Notice.

IT IS SO ORDERED.